



Nurturing Hands Doulas

DOULA CARE SERVICES AGREEMENT

This CLIENT SERVICES AGREEMENT (hereinafter "Agreement"), made and entered into this March 4, 2025 by and between Care by Carla a California Limited Liability Company, doing business as Nurturing Hands Doulas with a primary place of business at 921 Marina Way S, Unit D, Richmond - CA, 94804 (hereinafter NHD), and Muralikrishna Raju , resident at 2920 Putnam Blvd, Walnut Creek-CA, 94597 , ("Client", collectively the "Parties").

SECTION 1. DOULA CARE SERVICES

1. Statement of Work. Nurturing Hands Doulas offers Birth, Postpartum care and Sleep coaching. All work performed by NHD is documented in the "Statement of Work" attached as Attachment A. The Statement of Work shall set forth, at a minimum, the work to be done, the duration of services, client and doula expectations, and the fee structure for the work to be performed.

1. Method of Performing Services. NHD and Client will work together to establish Client goals. NHD will determine the method, details and means of performing the work to be carried out for Client once Client and NHD agree on the aforementioned mutual terms and goals.

1. Qualifications. Nurturing Hands Doulas represents that it has the qualifications and skills necessary to complete the services for Client. Nurturing Hands Doulas shall perform work in a professional and workmanlike manner, consistent with industry standards.

1. Independent Contractor Status. Nurturing Hands Doulas is an independent contractor and not an employee of Client.

SECTION 2. FEES AND PAYMENT

2.1 Fees and Deposits. The Payment Terms are outlined in the attached Statement of Work. Nurturing Hands Doulas requires an initial deposit (“Deposit”) to accompany this Agreement. The Deposit is fully earned and nonrefundable, subject to Section 3, below, and the terms of the Statement of Work. Deposits and balances due for services are detailed in the Statement of Work.

2.2 Late Fees. If payment is not received within thirty days of the invoice date, a late fee of 15% of the remaining invoice amount will be added.

2.3 Methods of Payment. Nurturing Hands Doulas accepts payment via bank transfer and Zelle.

SECTION 3. TERM & TERMINATION

3.1 Term. This Agreement will become effective on the date first shown above and will continue in effect until the end of the services described in the attached Statement of Work (“Term”), or until Terminated by either party.

3.2 Termination By Client. Client may terminate this Agreement, subject to the following:

3.2.1 BIRTH DOULA SERVICES. Client may terminate this Agreement at any time; however, Client shall not receive a refund of any amounts paid, unless termination is pursuant to Section 6.2, below.

3.2.2 POSTPARTUM DOULA SERVICES. Client(s) may terminate services at any time with 14 day’s written notice, with the effective Termination Date being 14 days from date of notice. Client will be responsible for payment for all services rendered by Nurturing Hands Doulas up to and including the effective Termination Date. Final payment shall be due and owing on the Termination Date.

3.3 Termination By Nurturing Hands Doulas. In the event that NHD must terminate this Agreement, for any reason except termination

pursuant to Sections 3.4 or 6.1, NHD will provide Client 2 WEEKS written notice and will use its best faith efforts to find a replacement for Client. If Client chooses not to have NHD fulfill the 2 WEEKS and/or find a replacement, Client shall inform NHD, in writing, of the effective Termination Date NHD shall be relieved of any further obligations under this Agreement. Client will be responsible for payment for all services rendered by NHD up to and including the effective Termination Date. Final payment shall be due and owing on the Termination Date.

3.4 Termination For Non-Payment. NHD reserves the right to cease services until any overdue invoices are paid in full. Client is responsible for all fees, including legal and reasonable attorney fees, incurred by NHD in any efforts to collect payments due under this Agreement.

SECTION 4. SCHEDULING

4.1 DOULA Schedule. Client shall arrange the timing and location of services to be rendered directly with the NHD doula who shall keep NHD informed with respect to the same.

4.2 Cancellations or Rescheduling by NHD, NHD reserves the right to cancel or reschedule in case of illness, injury, emergency, client's non-payment, or due to a Force Majeure Event, defined below. In the event of illness, injury, or emergency, NHD may, at its discretion and subject to Client's approval, offer an alternate DOULA. NHD shall provide Client as much notice as is reasonably practical in the event of such cancellation, reschedule or substitution.

4.3 Cancellations or Rescheduling by Client – POSTPARTUM DOULA SERVICES. If Client wishes to cancel or reschedule a Doula shifts, 48 hours' notice is required, unless due to a Force Majeure Cause, in which case as much notice as is reasonably possible is requested. Client shall remain responsible for POSTPARTUM DOULA CARE fee for cancellations or rescheduling with less than 48 hours' notice, unless due to a Force Majeure Cause.

SECTION 5. CONFIDENTIALITY

5.1 Confidentiality. NHD understands and acknowledges that they may come into contact with information should reasonably be understood to be treated as confidential which includes, but is not limited to, personal information (non-public, personally identifiable information), financial, household, career or health information. NHD agrees to refrain from disclosing the Client's Confidential Information to any third parties, except to the extent as reasonably necessary to perform the services under this Agreement or as authorized by the Client in writing. Confidential Information does not include information which at the time of disclosure is in the public domain.

5.2 Non-solicitation of Doula. Client understands and agrees that Doula and NHD doulas work for NHD as employees or independent contractors. Client agrees not to solicit doula for direct hire by Client during the term of this Agreement. If Client wishes to directly hire doula within 12 months of the termination or expiration of this Agreement, Client agrees to pay to NHD a one-time referral fee of \$3500.

SECTION 6. HEALTH AND SAFETY

6.1 Doula Safety. Where Client creates an unsafe, unhealthy, stressful, negative, unethical, emotionally difficult, or constraining relationship or environment with NHD, NHD has the right to terminate this Agreement, and shall be immediately entitled to all monies paid and due.

6.2 Client Safety. In the event that Client feels that the working relationship with NHD has become unsafe, unhealthy, stressful, negative, unethical, emotionally difficult, or constraining, the NHD doula can be asked to leave employment immediately. Any accusations of an unhealthy working environment, criminal action or negligent activity must be documented in writing with proof of said incident or incident(s) and submitted to NHD with 2 business days of such occurrence(s). Client will be responsible for payment for all services rendered by NHD up to the date of such occurrence.

6.3 COVID Precautions & Waiver. It is NHD policy that doulas follow all state and federal guidelines with respect to social distancing and

personal safety. Due to the personal nature of the services, Client may, at its own discretion and sole risk, determine whether or not to follow such guidelines and practices. Client agrees to release, waive, indemnify and hold NHD, its owners, employees, agents, and their heirs and assigns, harmless in the event of any damages, illness, injury or death to Client or Clients' family or household guests, related to COVID19 or any other illness, contracted directly or indirectly from any NHD doula. Client assumes, on behalf of Client and Client's family or household guests, full risk for any illness, injury or death as a result of direct or indirect transmission of COVID19 or any illness during the performance of services under this Agreement.

SECTION 7. MISCELLANEOUS

7.1 Notices. All notices and other communications given in connection with this Agreement shall be in writing and shall be deemed given as follows:

7.1.1 When delivered personally to the recipient's address as appearing in the introductory paragraph to this Agreement;

7.1.2 Three days after being deposited in the United States mails, postage prepaid to the recipient's address as appearing in the introductory paragraph to this Agreement, or

7.1.3 When sent by fax or e-mail to the last fax number or e-mail address of the recipient known to the party giving notice.

Any party may change its or his address appearing in the introductory paragraph to this Agreement by giving notice of the change in accordance with this paragraph.

7.2 Force Majeure. In the event that we are unable to perform Services under this Agreement as a result of an Act of God, severe weather, quarantine restrictions, natural disaster, act of war, the declaration of a State or Federal State of Emergency, or the issuance of an Executive, Judicial, or Legislative Order or Advisory or any other event or occurrence beyond our reasonable control which directly affects our ability to operate or perform under this Agreement (collectively, Force Majeure Causes), NHD may, cancel or reschedule doula services, pursuant to the terms of Section 4, or, in

its sole discretion, extend the term of this Agreement for so long as the Force Majeure Cause remains in effect.

7.3 Indemnification. Except to the extent paid in settlement from any applicable insurance policies, and to the extent permitted by applicable law, each Party agrees to indemnify and hold harmless the other Party, and its respective affiliates, officers, agents, employees, and permitted successors and assigns against any and all claims, losses, damages, liabilities, penalties, punitive damages, expenses, reasonable legal fees and costs of any kind or amount whatsoever, which result from or arise out of any intentional, reckless, or negligent act or omission of the indemnifying party, its respective affiliates, officers, agents, employees, and permitted successors and assigns that occurs in connection with this Agreement. This indemnification will survive the termination of this Agreement.

7.4 Limitation of Liability. Except as expressly provided in this agreement, NHD makes no guarantees or warranties, express or implied. In no event will NHD be liable to Client for consequential or special damages. Notwithstanding any damages that Client may incur, NHD's entire liability under this agreement, and Client's exclusive remedy, will be limited to the amount actually paid by Client to NHD under this agreement for all services rendered up until the termination date.

7.5 Disputes. If a dispute arises out of this agreement that cannot be resolved by mutual consent, the parties agree to submit to binding arbitration before the American Arbitration Association (Commercial Arbitration and Mediation Center for the Americas Mediation and Arbitration Rules). Any judgment on the award rendered by the arbitrator may be entered in any court having jurisdiction thereof in the Alameda County, California. Such arbitration shall be conducted by a single arbitrator. The sole remedy that can be awarded to Client, pursuant to Section 6.2 of this Agreement, will be limited to the amount paid by Client to NHD under this Agreement.

7.6 Entire Agreement of the Parties. This Agreement, together with the Scope of Work described herein, supersedes any and all agreements, either oral or written, between the parties hereto with respect to the rendering of services by NHD and contains all the covenants and agreements between the parties with respect to the

rendering of such services in any manner whatsoever. Each party to this Agreement acknowledges that no representations, inducements, promises, or agreements, orally or otherwise, have been made by any party, or anyone acting on behalf of any party, that are not embodied herein, and that no other agreement, statement, or promise not contained in this agreement shall be valid or binding. Any modification of this Agreement will be effective only if it is in writing signed by the party to be charged.

7.7 Partial Invalidity. If any provision in this agreement is held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remaining provisions will nevertheless continue in full force without being impaired or invalidated in any way.

7.8 Governing Law; Venue. This Agreement is governed by and construed in compliance with the laws of the California without giving effect to any choice-of-law or conflict-of-law provision or rule. Any claims under this agreement may only be brought before a court of competent jurisdiction in Contra Costa County, California.

7.9 Execution in Counterparts. This Agreement may be executed by the parties hereto in any number of counterparts, and by each of the parties hereto in separate counterparts, each of which counterparts, when so executed and delivered, shall be deemed to be an original, but all such counterparts shall together constitute but one and the same instrument. Each counterpart may consist of a number of copies hereof each signed by less than all, but together signed by all, of the parties hereto.

7.10 No Waiver. No consent or waiver, express or implied, by any party to or of any breach or default by any other party in the performance by such other party of its obligations hereunder shall be deemed or construed to be a consent or waiver to or of any other breach or default in the performance of obligations hereunder by such other party hereunder. Failure on the part of any party to complain of any act or failure to act of any other party or to declare any other party in default, irrespective of how long such failure continues, shall not constitute a waiver by such first party of any of its rights hereunder.

7.11 Joint and Several Liability. If more than one Client enters into

this Agreement, the obligations are joint and several; each Client is individually, as well as jointly liable for the full performance of all agreed terms and payment of all sums required herein. As the context may require, a reference to Client in the singular may be read as the plural and the plural as the singular.

The undersigned acknowledge that they have read this agreement and agree to be bound by the terms and conditions set forth above.

Client:

Muralikrishna

Raju

Signature

Muralikrishna Raju

Digitally signed by Muralikrishna Raju

Date and time: 3/5/2025, 7:41:48 PM PST

IP address: 73.223.142.167

Nurturing Hands Doulas:

First name

Last name

Signature

Sign here

The date will be recorded once the form is submitted.

ATTACHMENT A
STATEMENT OF WORK
BIRTH DOULA

FEE: The Fee for Birth Doula Services is \$3900.
DEPOSIT: A deposit of \$1950 must accompany this Agreement.
BALANCE: The balance of \$1950 shall be due and paid at week 37 of pregnancy.

BIRTH DOULA SERVICES INCLUDE:
●Two prenatal visits lasting 1.5-2 hours.
●The labor and delivery.

- One 2-hour postpartum check in within 14 days of birth.

DOULA'S ROLE:

- Doulas educate and explain all options and assist in creating a birth plan to best support family ideals and decisions.
- Doula will start support when active labor has begun.
- Doulas do not perform any medical procedures.
- Doulas do not make any decisions on behalf of the family.
- Doula is on call 24/7 2 weeks before and 2 weeks after estimated due date.
- Doula will remain with birthing person until at least 2 hours after birth.
- Additional postpartum services can be arranged separately through NHD.

PROCEDURE:

- Parent/s will contact doula at the onset of labor.
- Parent/s will keep in contact with doula and advise her when to report to begin labor support.
- Doula will report within 90 minutes.
- In the unusual event the doula cannot make it, NHD will provide back-up doula care.

REFUNDS:

- Should parent/s fail to contact doula or baby is born less than 90 minutes after the call to report and doula misses the birth, the full fee is retained by NHD.
- If doula arrives later than 90 minutes after the call to report and the doula misses the birth, half of the fee is refunded to the Client.

Any additional services must be coordinated with CBC and added to this Statement of Work in writing.

MR _____

Client initials *